

NSG countries decided to do so, especially if New Delhi conducted another nuclear explosion. The draft document that has been negotiated with the IAEA and now circulated to its 35-member Board does contain these assurances in some of the clauses and the Government told the Left parties that most of their concerns on these counts had been met.

Soon after the Left parted ways with the UPA Government, Karat charged the Government with a lack of transparency on the IAEA safeguards

Indian officials maintained it was only procedural and that the Government would seek a vote of confidence before the Board took a decision. The IAEA Board is expected to fix July 28 for its India specific meeting.

When the IAEA approves the draft, the onus would then shift to the US to convene a special meeting of the NSG to make the necessary exception for India to be permitted to carry out civilian nuclear trade with its members. That process would not be a shoo-in as several members have

IF THE PRIME MINISTER pulls off this gamble, history beckons. For, in one masterstroke, India would end its nuclear isolation while retaining its weapons.

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agreement and wanted it to be made available to the public. The tactic was to make it seem that Manmohan was proceeding to the IAEA in stealth and was compromising India's strategic nuclear assets in the process. Karat also claimed that by signing the agreement, India would be stuck with it in perpetuity even if the Indo-US deal didn't go through. Karat had not done his homework. The IAEA agreement doesn't kick in till the NSG and the US Congress give it clearance and India then formally ratifies it. At any stage of the negotiating process, India can pull out without facing any adverse consequences from the IAEA. To counter Karat's charge a day after the Government sent the draft to the Board, the MEA put the text on its website. About the Government requesting the IAEA to circulate the draft among its Board members and fix a date to consider its approval,

TRUST IN ME: IAEA chief ElBaradei (left) with AEC chief Anil Kakodkar

expressed their reservations over making such a special deal for India. Countries like Ireland, New Zealand and some from the EU maintain that it would irrevocably damage the current nuclear non-proliferation architecture which is built to deny countries that don't sign the NPT access to civilian nuclear technology. These countries argue that India had not only refused to sign the NPT but also conducted nuclear tests. By ending India's pariah status, the NSG would weaken compliance among the nuclear have-nots who have signed the NPT.

India's other concern is that the NSG may not give it "a clean exemption" and instead foist killer caveats. Given the domestic political opposition, India has requested the US to ensure that there were no hiccups or embarrass-

ments at the NSG. It would need all of Bush's dwindling clout to get NSG clearance by September, just in time to have it listed for ratification by the US Congress before it adjourns.

The deal is unlikely to get the US Congress' seal of approval without some debate. Many Congressmen are already seething that Bush used his presidential powers to waive some uncomfortable clauses that the Hyde Act could foist on India. The Congress could also engage in an elaborate discussion of the 123 bilateral agreement to see if it conformed to the Hyde Act in spirit and law. Such matters are, as a norm, to be listed for discussion for a period of three months. US negotiators are concerned that there may not be enough time to get the current Congress to endorse the deal. Given the tremendous bipartisan support the deal enjoys, members of the next Congress may ensure its passage. Also, by then it would be something of a fait accompli because technically India can then proceed to trade with Russia and France, making US companies howl at the loss of business.

For Manmohan, if he is able to pull off this incredible gamble, history beckons. For, in one master-stroke he would end India's years of nuclear isolation even while maintaining its strategic force intact—a major achievement. As importantly, with nuclear energy now looked upon as a solution to the world's climate change woes, the prime minister would have ensured that India had access to the latest technology, helping boost the country's energy security while allowing it to bring down its carbon footprint. No wonder the rush. ■